

Smt. Shahida Begum v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 6 September 2016 · Writ-C No. 40717 of 2016 · **Writ dismissed as not maintainable; liberty to approach under cl. 6.5.**

HEADNOTE

A subsequent writ seeking similar electricity reliefs is not maintainable where an earlier writ for the same reliefs was dismissed as withdrawn. Dismissal does not preclude the consumer from approaching the concerned authority under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Shahida Begum filed this writ against the State of Uttar Pradesh and two others, seeking reliefs of the same character as in her earlier Writ-C No. 37426 of 2016. That earlier petition had been dismissed as withdrawn on 12 August 2016. Counsel for the petitioner and for respondents 2 and 3 were heard. The Division Bench treated the present petition as a second writ for similar reliefs after that withdrawal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternate-remedy

HOLDING

A second writ seeking similar electricity reliefs is not maintainable after an earlier petition for the same reliefs was dismissed as withdrawn. The consumer may still approach the concerned authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A subsequent writ seeking similar electricity reliefs is not maintainable where an earlier writ for the same reliefs was dismissed as withdrawn. Dismissal does not preclude the consumer from approaching the concerned authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CLAIM FOR ELECTRICITY RELIEF

Not examined; the writ was held not maintainable after withdrawal of an earlier similar petition, with liberty to proceed under cl. 6.5. ¶ 1